

EUROPEAN COURT OF HUMAN RIGHTS
COUR EUROPÉENNE DES DROITS DE L'HOMME

SECOND SECTION

CASE OF PEREVOZCHENKO AND OTHERS v. RUSSIA

(Applications nos. 38671/21 and 21 others –
see appended list)

JUDGMENT

STRASBOURG

14 March 2024

This judgment is final but it may be subject to editorial revision.



In the case of Perevozchenko and Others v. Russia,

The European Court of Human Rights (Second Section), sitting as a Committee composed of:

Lorraine Schembri Orland*, President*,
Frédéric Krenc,
Davor Derenčinović*, judges*,
and Viktoriya Maradudina, *Acting Deputy Section Registrar,*

Having deliberated in private on 15 February 2024,

Delivers the following judgment, which was adopted on that date:

PROCEDURE

1. The case originated in applications against Russia lodged with the Court under Article 34 of the Convention for the Protection of Human Rights and Fundamental Freedoms ("the Convention") on the various dates indicated in the appended table.

2. The Russian Government ("the Government") were given notice of the applications.

THE FACTS

3. The list of applicants and the relevant details of the applications are set out in the appended table.

4. The applicants complained of the disproportionate measures taken against them as organisers or participants of public assemblies. They also raised other complaints under the provisions of the Convention.

THE LAW

I. JOINDER OF THE APPLICATIONS

5. Having regard to the similar subject matter of the applications, the Court finds it appropriate to examine them jointly in a single judgment.

II. JURISDICTION

6. The Court observes that the facts giving rise to the alleged violations of the Convention occurred prior to 16 September 2022, the date on which the Russian Federation ceased to be a party to the Convention. The Court therefore decides that it has jurisdiction to examine the present applications (see *Fedotova and Others v. Russia* [GC], nos. 40792/10 and 2 others, §§ 68-73, 17 January 2023).

III. ALLEGED VIOLATION OF ARTICLE 11 OF THE CONVENTION

7. The applicants complained principally of disproportionate measures taken against them as organisers or participants of public assemblies, namely their arrest in relation to the dispersal of these assemblies and their conviction for administrative offences. They relied, expressly or in substance, on Article 11 of the Convention.

8. The Court refers to the principles established in its case-law regarding freedom of assembly (see *Kudrevičius and Others v. Lithuania* [GC], no. 37553/05, ECHR 2015, with further references) and proportionality of interference with it (see *Oya Ataman v. Turkey*, no. 74552/01, ECHR 2006-XIV, and *Hyde Park and Others v. Moldova*, no. 33482/06, 31 March 2009).

9. In the leading cases of *Frumkin v. Russia,* no. 74568/12, ECHR 2016 (extracts), *Navalnyy and Yashin v. Russia,* no. 76204/11, 4 December 2014 and *Kasparov and Others v. Russia,* no. 21613/07, 3 October 2013, the Court already found a violation in respect of issues similar to those in the present case.

10. Having examined all the material submitted to it, the Court has not found any fact or argument capable of persuading it to reach a different conclusion as to the admissibility and merits of these complaints. Having regard to its case-law on the subject, the Court considers that in the instant case the interferences with the applicants' freedom of assembly were not "necessary in a democratic society".

11. These complaints are therefore admissible and disclose a breach of Article 11 of the Convention.

IV. OTHER ALLEGED VIOLATIONS UNDER WELL-ESTABLISHED CASE-LAW

12. Some applicants submitted other complaints which also raised issues under the Convention and its Protocols, given the relevant well-established case-law of the Court (see appended table). These complaints are not manifestly ill-founded within the meaning of Article 35 § 3 (a) of the Convention, nor are they inadmissible on any other ground. Accordingly, they must be declared admissible.

13. Having examined all the material before it, the Court concludes that these complaints also disclose violations of the Convention and its Protocols in the light of its findings in *Lashmankin and Others v. Russia*, nos. 57818/09 and 14 others, § 489, 7 February 2017, *Butkevich v. Russia*, no. 5865/07, §§ 63-65, 13 February 2018, *Tsvetkova and Others v. Russia*, nos. 54381/08 and 5 others, §§ 115-31, 10 April 2018, and *Korneyeva v. Russia*, no. 72051/17, §§ 34-36, 8 October 2019, as to various aspects of unlawful deprivation of liberty of organisers or participants of public assemblies;

Karelin v. Russia, no. 926/08, §§ 58-85, 20 September 2016, concerning the absence of a prosecuting party in the proceedings under the Code of Administrative Offences (the CAO); *Glukhin v. Russia,* no. 11519/20, §§ 64-91, 4 July 2023, concerning unjustified processing of the applicant's personal biometric data by using highly intrusive facial recognition technology in administrative offence proceedings in order to identify, locate and arrest him; *Martynyuk v. Russia*, no. 13764/15, §§ 38-42, 8 October 2019, and *Tsvetkova and Others*, cited above, §§ 178-88, relating to the lack of suspensive effect of an appeal against the sentence of administrative detention.

V. REMAINING COMPLAINTS

14. Some applicants raised further additional complaints under Article 6 of the Convention concerning other aspects of fairness of the administrative-offence proceedings. In view of the findings in paragraphs above, the Court considers that there is no need to deal separately with these remaining complaints.

VI. APPLICATION OF ARTICLE 41 OF THE CONVENTION

15. Regard being had to the documents in its possession and to its case-law (see in particular *Navalnyy and Others v. Russia* [Committee], nos. 25809/17 and 14 others, § 22, 4 October 2022, and *Glukhin*, cited above, § 96), the Court finds it reasonable to award the sums indicated in the appended table.

FOR THESE REASONS, THE COURT, UNANIMOUSLY,

1. *Decides* to join the applications;

2. *Holds* that it has jurisdiction to deal with these applications as they relate to the facts that took place before 16 September 2022;

3. *Declares* the complaints under Article 11 of the Convention and the other complaints under the well-established case-law of the Court, as set out in the appended table, admissible, and *finds* that there is no need to examine separately the remaining complaints under Article 6 of the Convention;

4. *Holds* that these applications disclose a breach of Article 11 of the Convention;

5. *Holds* that there has been a violation of the Convention and the Protocols thereto as regards the other complaints raised under the well-established case-law of the Court (see appended table);

6. *Holds*
   (a) that the respondent State is to pay the applicants, within three months, the amounts indicated in the appended table, to be converted into the currency of the respondent State at the rate applicable at the date of settlement;
   (b) that from the expiry of the above-mentioned three months until settlement simple interest shall be payable on the above amounts at a rate equal to the marginal lending rate of the European Central Bank during the default period plus three percentage points.

Done in English, and notified in writing on 14 March 2024, pursuant to Rule 77 §§ 2 and 3 of the Rules of Court.

Viktoriya Maradudina Acting Deputy Registrar	Lorraine Schembri Orland President

APPENDIX

List of applications raising complaints under Article 11 of the Convention
(disproportionate measures against organisers and participants of public assemblies)

No.	Application no. Date of introduction	Applicant's name Year of birth	Representative's name and location	Name of the public event Location Date	Administrative offence	Penalty	Final domestic decision Court Name Date	Other complaints under well-established case-law	Amount awarded for pecuniary and non-pecuniary damage and costs and expenses (in euros)[1]
1.	38671/21 15/07/2021	**Ksenya Alekseyevna PEREVOZCHENKO** 1991	Memorial Human Rights Centre Moscow	Rally "Free Navalnyy" Moscow 31/01/2021	article 20.2 § 6.1 of CAO	administrative detention of 15 days	Moscow City Court 05/02/2021	Art. 5 (1) - unlawful deprivation of liberty: escorting to a police station for the purpose of drawing up a record of administrative offence; detention in excess of 3 hours and without "exceptional circumstances", from 1.30 p.m. on 31/01/2021 to 6.00 p.m. on 01/02/2021, hearing in the applicant's administrative-offence case; the applicant spent 2 hours in the police van, Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings - final decision: Moscow City Court, 05/02/2021, Prot. 7 Art. 2 - delayed review of conviction by a higher tribunal - the sentence of administrative detention imposed on the applicant was executed immediately, on account of the lack of suspensive effect of an appeal under the CAO.	5,000
2.	54425/21 27/10/2021	**Maksim Vladimirovich SHABALIN** 2000	Memorial Human Rights Centre Moscow	Rally "Free Navalnyy" Moscow 02/02/2021	article 20.2 § 5 of CAO	fine of RUB 10,000	Moscow City Court 25/05/2021	Art. 5 (1) - unlawful deprivation of liberty: escorting to a police station for the purpose of drawing up a record of administrative offence; detention in excess of 3 hours and without "exceptional circumstances", from 11.30 a.m. to 4.20 p.m. on 02/02/2021, Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings - final decision: Moscow City Court, 25/05/2021.	4,000

No.	Application no. Date of introduction	Applicant's name Year of birth	Representative's name and location	Name of the public event Location Date	Administrative offence	Penalty	Final domestic decision Court Name Date	Other complaints under well-established case-law	Amount awarded for pecuniary and non-pecuniary damage and costs and expenses (in euros)[1]
3.	55836/21 25/10/2021	**Yegor Vyacheslavovich BESCHASTNOV** 2002	Mamedova Yelena Anatolyevna Samara	Rally "Free Navalnyy" Samara 21/04/2021	article 20.2 § 5 of CAO	30 hours of community work	Samara Regional Court 20/07/2021	Art. 5 (1) - unlawful deprivation of liberty: escorting to a police station for the purpose of drawing up a record of administrative offence, on 21/04/2021, while the said record was only drawn up on 22/04/2021 when the applicant was released, Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings - Samara Regional Court, 27/07/2021.	4,000
4.	55908/21 29/10/2021	**Oleg Rifatovich KHUSAINOV** 1986	Memorial Human Rights Centre Moscow	Rally "Free Navalnyy" Irkutsk 31/01/2021	article 20.2 § 5 of CAO	fine of RUB 10,000	Irkutsk Regional Court 24/06/2021	Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings - final decision: Irkutsk Regional Court, 24/06/2021.	3,500
5.	6392/22 22/12/2021	**Maksim Yuryevich KHALIMOVSKIY** 1990	Semenov Daniil Aleksandrovich St Petersburg	Rally "Free Navalnyy" St Petersburg 31/01/2021	article 20.2 § 6.1 of CAO	fine of RUB 10,000	St Petersburg City Court 22/06/2021	Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings - final decision: St Petersburg City Court, 22/06/2021.	3,500
6.	22019/22 13/04/2022	**Yanus Yanusovich GREYNER** 1994	Memorial Human Rights Centre Moscow	Rally "Free Navalnyy" Moscow 31/01/2021	article 20.2 § 5 of CAO	fine of RUB 10,000	Moscow City Court 17/11/2021	Art. 5 (1) - unlawful deprivation of liberty: escorting to a police station for the purpose of drawing up a record of administrative offence; detention in excess of 3 hours and without "exceptional circumstances", from 10.45 a.m. to 6.00 p.m. on 31/01/2021, Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings - final decision: Moscow City Court, 17/11/2021, Art. 8 (2) - restrictions on the right to private life of participants in public assemblies - use of facial recognition technology for the identification of the	6,000

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								applicant as a participant of a rally and his subsequent conviction (raised on appeal)	
7.	22658/22 12/04/2022	**Sergey Nikolayevich BOGATKO** 1987	Memorial Human Rights Centre Moscow	Rally "Free Navalnyy Moscow 31/01/2021	article 20.2 § 5 of CAO	fine of RUB 15,000	Moscow City Court 27/10/2021	Art. 5 (1) - unlawful deprivation of liberty: escorting to a police station for the purpose of drawing up a record of administrative offence; detention in excess of 3 hours and without "exceptional circumstances", from 12.20 p.m. to 6.30 p.m. on 31/01/2021, Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings - final decision: Moscow City Court, 27/10/2021.	4,000
8.	23622/22 28/03/2022	**Ilya Mikhaylovich GARTSEV** 1986	Memorial Human Rights Centre Moscow	Rally "Free Navalnyy Moscow 21/04/2021	article 20.2 § 5 of CAO	fine of RUB 15,000	Moscow City Court 29/10/2021	Art. 5 (1) - unlawful deprivation of liberty: escorting to a police station for the purpose of drawing up a record of administrative offence; detention in excess of 3 hours and without "exceptional circumstances", from 9.00 a.m. to 12.30 p.m. on 18/05/2021, Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings - final decision: Moscow City Court, 29/10/2021, Art. 8 (2) - restrictions on the right to private life of participants in public assemblies - use of facial recognition technology for the identification of the applicant as a participant of a rally and his subsequent conviction (raised on appeal).	6,000
9.	30530/22 31/05/2022	**Mariya Sergeyevna KOLOKOLOVA** 2001	Aksenova Darya Dmitriyevna Kolomna	Rally "Free Navalnyy" Moscow 02/02/2021	article 20.2 § 5 of CAO	fine of RUB 10,000	Moscow City Court 17/02/2022	Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings - final decision: Moscow City Court, 17/02/2021.	3,500

No.	Application no. Date of introduction	Applicant's name Year of birth	Representative's name and location	Name of the public event Location Date	Administrative offence	Penalty	Final domestic decision Court Name Date	Other complaints under well-established case-law	Amount awarded for pecuniary and non-pecuniary damage and costs and expenses (in euros)[1]
10.	30537/22 31/05/2022	**Viktor Aleksandrovich AMPILOV** 1997	Aksenova Darya Dmitriyevna Kolomna	Rally "Free Navalnyy" Moscow 21/04/2021	article 20.2 § 5 of CAO	fine of RUB 20,000	Moscow City Court 03/12/2021	Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings - final decision: Moscow City Court, 03/12/2021.	3,500
11.	35400/22 04/07/2022	**Anton Yuryevich IVANOV** 1987	Baranova Natalya Andreyevna Moscow	Anti-war protest Moscow 27/02/2022	article 20.2 § 8 of CAO	administrative detention of 30 days	Moscow City Court 04/03/2022	Art. 5 (1) - unlawful deprivation of liberty: escorting to a police station for the purpose of drawing up a record of administrative offence; detention in excess of 3 hours and without "exceptional circumstances", from 6.30 p.m. on 27/02/2022 until 3.00 a.m. on 01/03/2022, hearing in the applicant's administrative-offence case; the applicant spent four and a half hours the police van, Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings - final decision: Moscow City Court, 04/03/2022, Prot. 7 Art. 2 - delayed review of conviction by a higher tribunal - the sentence of administrative detention imposed on the applicant was executed immediately, on account of the lack of suspensive effect of an appeal under the CAO.	6,000
12.	35667/22 06/07/2022	**Ivan Aleksandrovich OSIPOV** 1998	Vasilchenko Olesya Anatolyevna Minyar	Anti-war protest St Petersburg 06/03/2022	article 20.2 § 6.1 of CAO	fine of RUB 10,000	St Petersburg City Court 12/04/2022	Art. 5 (1) - unlawful deprivation of liberty: escorting to a police station for the purpose of drawing up a record of administrative offence; detention in excess of 3 hours and without "exceptional circumstances", from 3.10 p.m. on 06/03/2022 to 10.30 a.m. on 07/03/2022, hearing in the applicant's administrative-offence case, Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings - final decision: St Petersburg City Court, 12/04/2022.	4,000

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13.	36047/22 28/06/2022	**Yuliya Viktorovna LEDOVSKAYA** 1979	Usanova Olimpiada Valentinovna Nizhniy Novgorod	Anti-war protest Nizhniy Novgorod 24/02/2022	article 20.2 § 5 of CAO	fine of RUB 10,000	Nizhniy Novgorod Regional Court 27/04/2022	Art. 5 (1) - unlawful deprivation of liberty: escorting to a police station for the purpose of drawing up a record of administrative offence; detention in excess of 3 hours and without "exceptional circumstances", from 7.40 p.m. on 24/02/2022 to 6.20 a.m. on 25/02/2022, hearing in the applicant's administrative-offence case, Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings - final decision: Nizhniy Novgorod Regional Court, 27/04/2022.	4,000
14.	36652/22 29/06/2022	**Svetlana Aleksandrovna USHMODINA** 2001	Baranova Natalya Andreyevna Moscow	Anti-war protest Moscow 24/02/2022	article 20.2 § 8 of CAO	administrative detention of 20 days	Moscow City Court 01/03/2022	Art. 5 (1) - unlawful deprivation of liberty: escorting to a police station for the purpose of drawing up a record of administrative offence; detention in excess of 3 hours and without "exceptional circumstances", from 7.40 p.m. on 24/02/2022 to 2.20 p.m. on 25/02/2022, hearing in the applicant's administrative-offence case, Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings - final decision: Moscow City Court, 01/03/2022, Prot. 7 Art. 2 - delayed review of conviction by a higher tribunal - the sentence of administrative detention imposed on the applicant was executed immediately, on account of the lack of suspensive effect of an appeal under the CAO.	6,000
15.	36667/22 16/07/2022	**Yelena Aleksandrovna SLAVINSKAYA** 1961	Baranova Natalya Andreyevna Moscow	Meeting with deputy V. Rashkin Moscow 20/09/2021	article 20.2 § 5 of CAO	fine of RUB 20,000	Moscow City Court 25/01/2022	Art. 5 (1) - unlawful deprivation of liberty: escorting to a police station for the purpose of drawing up a record of administrative offence; detention in excess of 3 hours and without "exceptional circumstances", from 3.00 p.m. to 6.05 p.m. on 20/09/2021, Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings - final decision: Moscow City Court, 25/01/2022,	6,000

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								Art. 8 (2) - restrictions on the right to private life of participants in public assemblies - use of facial recognition technology for the identification of the applicant as a participant of a rally and her subsequent conviction (raised on appeal).	
16.	37092/22 22/07/2022	**Vladislav Olegovich ROY** 1996		Anti-war protest Ufa 06/03/2022	article 19.3 § 1 of CAO	administrative detention of 1 day	Supreme Court of the Bashkortostan Republic 11/04/2022	Art. 5 (1) - unlawful deprivation of liberty: escorting to a police station for the purpose of drawing up a record of administrative offence; detention in excess of 3 hours and without "exceptional circumstances", from 2.00 p.m. on 06/03/2022 to 2.15 p.m. on 07/03/2022, hearing in the applicant's administrative-offence case, Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings - final decision: Supreme Court of the Bashkortostan Republic, 11/04/2022.	4,000
17.	41072/22 15/08/2022	**Ayzhamal Akylbekovna BAYMURZAYEVA** 1997	Baranova Natalya Andreyevna Moscow	Anti-war protest Krasnoyarsk 06/03/2022	article 20.2 § 5 of CAO	fine of RUB 10,000	Krasnoyarsk Regional Court 11/05/2022	Art. 5 (1) - unlawful deprivation of liberty: escorting to a police station for the purpose of drawing up a record of administrative offence; detention in excess of 3 hours and without "exceptional circumstances", from 3.30 p.m. to 6.30 on 06/03/2022, while the said record was drawn up only on 12/03/2022, Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings - final decision: Krasnoyarsk Regional Court, 11/05/2022.	4,000
18.	45938/22 08/09/2022	**Aleksey Nikolayevich VASILYEV** 1988		Rally "Free Navalnyy Moscow 21/04/2021	article 20.2 § 5 of CAO	fine of RUB 10,000	Moscow City Court 11/05/2022	Art. 5 (1) - unlawful deprivation of liberty: escorting to a police station for the purpose of drawing up a record of administrative offence; detention in excess of 3 hours and without "exceptional circumstances", from 11.15 a.m. to 07.15 p.m. on 26/04/2021, hearing in the applicant's administrative-offence case, Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings - final decision: Moscow City Court, 11/05/2022.	4,000

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19.	45941/22 10/09/2022	**Rustem Gumyarovich BAKHITOV** 1989	Lapuzin Aleksey Sergeyevich Samara	Anti-war protest Samara 06/03/2022	article 20.2 § 5 of CAO	fine of RUB 20,000	Samara Regional Court 12/05/2022	Art. 5 (1) - unlawful deprivation of liberty: escorting to a police station for the purpose of drawing up a record of administrative offence, detention in excess of 3 hours and without "exceptional circumstances", from 3.15 p.m. to 10.00 p.m. on 06/03/2022, Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings - final decision: Samara Regional Court, 12/05/2022.	4,000
20.	47805/22 15/09/2022	**Yelena Viktorovna MILUSHKINA** 1995	Zinovyev Konstantin Mikhaylovich Nizhniy Novgorod	Anti-war protest Nizhniy Novgorod 06/03/2022	article 20.2 § 5 of CAO	fine of RUB 10,000	Nizhniy Novgorod Regional Court 25/05/2022	Art. 5 (1) - unlawful deprivation of liberty: escorting to a police station for the purpose of drawing up a record of administrative offence; detention in excess of 3 hours and without "exceptional circumstances", from 3.10 p.m. on 06/03/2022 to 4.00 p.m. on 07/03/2022, hearing in the applicant's administrative-offence case, Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings - final decision: Nizhny Novgorod Regional Court, 25/05/2022.	4,000
21.	48114/22 14/09/2022	**Nadezhda Vladimirovna BOLOBONINA** 2002	Zinovyev Konstantin Mikhaylovich Nizhniy Novgorod	Ant-war protest Nizhniy Novgorod 06/03/2022	article 20.2 § 6.1 of CAO	fine of RUB 5,000	Nizhniy Novgorod Regional Court 25/05/2022	Art. 5 (1) - unlawful deprivation of liberty: escorting to a police station for the purpose of drawing up a record of administrative offence; detention in excess of 3 hours and without "exceptional circumstances", from 3.10 p.m. on 06/03/2022 to 1.00 a.m. on 07/03/2022, Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings - final decision: Nizhny Novgorod Regional Court, 25/05/2022.	4,000

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22.	48915/22 30/09/2022	**Manuk Ayrikovich AKOPYAN** 1996	Zinovyev Konstantin Mikhaylovich Nizhniy Novgorod	Anti-war protest Nizhniy Novgorod 06/03/2022	article 20.2 § 5 of CAO	fine of RUB 15,000	Nizhniy Novgorod Regional Court 01/06/2022	Art. 5 (1) - unlawful deprivation of liberty: escorting to a police station for the purpose of drawing up a record of administrative offence; detention in excess of 3 hours and without "exceptional circumstances", from 3.10 p.m. on 06/03/2022 until 1.00 a.m. on 07/03/2022, Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings - final decision: Nizhny Novgorod Regional Court, 01/06/2022.	4,000

[1] Plus any tax that may be chargeable to the applicants.